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Rcpt: 98465 Rec: 24.00
DS: 0.00 IT: 0.00
09/03/96 _____ Dpty Clerk

JED PITTMAN, PASCO COUNTY CLERK
09/03/96 02:04pm 1 of 5
OR BK 3624 PG 1157

Prepared by and return to:
Joseph D. Edwards, Esquire
Annis, Mitchell, Cockey,
Edwards & Roehn, P.A.
P.O. Box 3433
Tampa, Florida 33601

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DECLARATION OF CONSENT TO JURISDICTION OF COMMUNITY DEVELOPMENT DISTRICT AND TO IMPOSITION OF SPECIAL ASSESSMENTS

Trout Creek Properties, Inc., a Delaware corporation (the "Landowner"), is the sole owner of the land described in Exhibit "A" attached hereto and made a part hereof, except for certain tracts and proposed rights-of-way owned by Pasco County and by the Meadow Pointe II Community Development District (the "District"). The land described in Exhibit "A" is located within the boundaries of the District. The undersigned, intending that it and its respective successors in interest shall be legally bound by this Declaration, hereby declares, acknowledges and agrees as follows:

1. The District is, and has been at all times on and after October 7, 1994, a legally created, duly organized, and validly existing community development district under the provisions of Florida Statutes, Chapter 190 (1993). The members of the Board of Supervisors of the District (the "Supervisors") and officers as constituted from October 10, 1994, to and including the date of this Declaration were duly elected to their respective positions in accordance with all requirements of Federal and Florida law including the Constitution of the United States of America and of the State of Florida and had the authority and right to authorize, approve, and undertake all actions of the District approved and undertaken from October 10, 1994 to and including the date of this Declaration.

2. The Landowner, its heirs, successors and assigns, hereby confirms and agrees that the special assessments imposed by Resolution 96-2 duly adopted by the Board of Supervisors of the District on July 24, 1996, and Resolution 96-4 duly adopted by the Board of Supervisors on August 21, 1996, are the valid, legal, binding obligations of the Landowner, its heirs, successors and assigns, and the Landowner, its heirs, successors and assigns, in consideration of the improvements for which such assessments have been levied by the District, hereby covenant to pay such assessments, as and when due, but recourse against the

Landowner for failure to pay the assessments shall be limited to enforcement of the assessments as provided by law. The Landowner acknowledges and agrees that it was present at the meetings of the Board of Supervisors of the District at its meetings on July 24, 1996, and August 21, 1996, that such August 21, 1996, meeting was a continuation to a date certain of a regularly scheduled and noticed meeting of such Board, and further that it waived and does hereby waive any further notice which could be asserted as being applicable under provisions of Florida law in connection with such meeting.

3. The Landowner, its heirs, successors and assigns, hereby waives the right granted in Chapter 170.09, Florida Statutes (1993), to prepay the special assessments within thirty (30) days after the improvements are completed without interest, in consideration of the District's undertaking to make the Improvements.

THE DECLARATIONS, ACKNOWLEDGEMENTS, AND AGREEMENTS CONTAINED HEREIN SHALL RUN WITH THE LAND DESCRIBED IN EXHIBIT "A" HERETO AND SHALL BE BINDING ON PROPERTIES AND ON ALL PERSONS (INCLUDING CORPORATIONS, ASSOCIATIONS, TRUSTS, AND OTHER LEGAL ENTITIES) TAKING TITLE TO ALL OR ANY PART OF THE LAND, AND THEIR SUCCESSORS IN INTEREST, WHETHER OR NOT THE LAND IS PLATTED AT SUCH TIME. BY TAKING SUCH TITLE SUCH PERSONS SHALL BE DEEMED TO HAVE CONSENTED AND AGREED TO THE PROVISIONS OF THIS DECLARATION TO THE SAME EXTENT AS IF THEY HAD EXECUTED IT AND BY TAKING SUCH TITLE SUCH PERSONS SHALL BE ESTOPPED FROM CONTESTING, IN COURT OR OTHERWISE, THE VALIDITY, LEGALITY, AND ENFORCEABILITY OF THIS DECLARATION OR OF ANY OF THE ORDINANCES, RESOLUTIONS, AGREEMENTS, DOCUMENTS, AND OTHER MATTERS DEALT WITH HEREIN.

Dated effective as of the 28th day of August, 1996.

TROUT CREEK PROPERTIES, INC.,
a Delaware corporation

By: S. Douglas Pratt

Print Name: S. Douglas Pratt

Title: Controller, Assistant Secretary and Assistant Treasurer

(Corporate Seal)

WITNESSES

Amy Fleuti

Stuart B. Arnold

STATE OF California

COUNTY OF San Francisco

The foregoing instrument was acknowledged before me this 22 day of August, 1996, by S. Douglas Post, as Controller Assist. Sec. + Treas. of Trout Creek Properties, Inc., a Delaware corporation, on behalf of the corporation. He/She is personally known to me or produced _____ as identification and did not take an oath.

Linda Jean Papciak
Notary Public
Print Name: Linda Jean Papciak

Commission No.: 1051229
My Commission Expires: 2/27/99

(AFFIX NOTARY SEAL)

1551-041-0357079.01

Linda Jean Papciak
Comm. #1051229
NOTARY PUBLIC CALIFORNIA
City & County of San Francisco
Comm. Expires Feb 27, 1999

EXHIBIT "A"

MEADOW POINTE PARCEL 10 UNIT 3
(Plat)

DESCRIPTION: A parcel of land lying in the East 1/2 of Section 32, Township 26 South, Range 20 East, Pasco County, Florida, and being more particularly described as follows:

From the Southeast corner of the Northeast 1/4 of said Section 32, run thence N.32°21'38"W., 361.33 feet; thence N.43°36'00"E., 33.12 feet; thence N.32°15'00"E., 116.55 feet; thence N.17°29'31"E., 71.04 feet to a point on a curve; thence Westerly, 113.65 feet along the arc of a curve to the right having a radius of 1610.00 feet and a central angle of 04°02'40" (chord bearing N.79°58'41"W., 113.62 feet) to the Southeast corner of the (Proposed) COUNTYLINE ROAD PHASE "GH"; thence along said the Southerly right-of-way line of said (Proposed) COUNTYLINE ROAD PHASE "GH", continue Westerly, 293.81 feet along the arc of said curve to the right having a radius of 1610.00 feet and a central angle of 10°27'21" (chord bearing N.72°43'41"W., 293.40 feet) to the **POINT OF BEGINNING**; thence S.22°30'00"W., 150.00 feet; thence S.58°21'00"W., 166.74 feet; thence S.36°00'00"W., 745.00 feet; thence S.62°49'54"W., 1150.00 feet; thence N.23°00'00"W., 315.03 feet; thence N.58°30'00"E., 588.45 feet; thence S.31°30'00"E., 6.50 feet; thence N.58°30'00"E., 194.00 feet; thence N.58°23'50"E., 66.88 feet; thence N.54°18'00"E., 75.65 feet; thence N.48°02'00"E., 75.65 feet; thence N.41°46'00"E., 75.65 feet; thence N.35°30'00"E., 75.65 feet; thence N.29°14'00"E., 75.65 feet; thence N.22°58'00"E., 75.65 feet; thence N.16°42'00"E., 95.76 feet; thence N.20°00'49"E., 50.00 feet to a point on a curve; thence Westerly, 60.66 feet along the arc of a curve to the left having a radius of 325.00 feet and a central angle of 10°41'40" (chord bearing N.75°20'01"W., 60.57 feet); thence N.09°19'09"E., 93.70 feet; thence N.28°07'45"E., 448.99 feet to a point on the (Proposed) Southerly right-of-way line of COUNTYLINE ROAD PHASE "FG"; thence along said (Proposed) Southerly right-of-way line the following two (2) courses: 1) S.52°16'42"E., 247.38 feet to a point of curvature; 2) Southeasterly, 168.90 feet along the arc of a curve to the left having a radius of 1610.00 feet and a central angle of 06°00'39" (chord bearing S.55°17'02"E., 168.83 feet) to the Southeast corner of said (Proposed) COUNTYLINE ROAD PHASE "FG"; thence along the aforesaid Southerly right-of-way line of (Proposed) COUNTYLINE ROAD PHASE "GH", continue Southeasterly, 258.82 feet along the arc of said curve to the left having a radius of 1610.00 feet and a central angle of 09°12'39" (chord bearing S.62°53'41"E., 258.54 feet) to the **POINT OF BEGINNING.**

Containing 20.686 acres, more or less.

DDT-TC-398
WP-100.01:MP103P
VR

August 27, 1996

MEADOW POINTE PARCEL 11
(Plat)

DESCRIPTION: A parcel of land lying in the East 1/2 of Section 32, Township 26 South, Range 20 East, Pasco County, Florida, and being more particularly described as follows:

BEGINNING at the Southeast corner of the Northeast 1/4 of said Section 32, run thence S.58°00'00"W., 221.81 feet; thence S.32°00'00"E., 349.09 feet to a point on the East boundary of the Southeast 1/4 of said Section 32; thence along said East boundary of the Southeast 1/4 of Section 32, S.00°25'56"W., 110.37 feet; thence S.57°00'00"W., 335.85 feet; thence S.43°00'00"W., 437.12 feet; thence S.28°00'00"W., 399.17 feet; thence S.67°04'53"W., 456.36 feet; thence S.67°00'00"W., 557.98 feet; thence N.23°00'00"W., 1111.64 feet; thence N.62°49'54"E., 1150.00 feet; thence N.36°00'00"E., 745.00 feet; thence N.58°21'00"E., 166.74 feet; thence N.22°30'00"E., 150.00 feet to a point on a curve on the (Proposed) Southerly right-of-way line of COUNTYLINE ROAD PHASE "GH"; thence along said (Proposed) Southerly right-of-way line, Easterly, 293.81 feet along the arc of a curve to the left having a radius of 1610.00 feet and a central angle of 10°27'21" (chord bearing S.72°43'41"E., 293.40 feet) to the Southeast corner of said (Proposed) COUNTYLINE ROAD PHASE "GH", also being the Southwest corner of (Proposed) COUNTYLINE ROAD PHASE "HI"; thence along the Southerly right-of-way line of said (Proposed) COUNTYLINE ROAD PHASE "HI", continue Easterly, 113.65 feet along the arc of said curve to the left having a radius of 1610.00 feet and a central angle of 04°02'40" (chord bearing S.79°58'41"E., 113.62 feet); thence S.17°29'31"W., 71.04 feet; thence S.32°15'00"W., 116.55 feet; thence S.43°36'00"W., 33.12 feet; thence S.32°21'38"E., 361.33 feet to the POINT OF BEGINNING.

Containing 56.567 acres, more or less.

DDT-TC-324
WP-100.01:MP11-P
VR

August 27, 1996